

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition (>SAT)

Acquisition Plan Action ID: 36C244-26-AP-2336

1. **Contracting Activity:** Department of Veterans Affairs, VISN 4, Lebanon VAMC, Facilities Service is requesting this J & A approval from the NCO4 Construction Team - West.
2. **Nature and/or Description of the Action Being Processed:** This is a Justification and Approval for Other Than Full and Open Competition, Brand Name Only, for BEST access systems and locks which are a small portion of the construction materials for construction project 595-22-103 Repair Façade and Roof Bldgs 10 and 24, a new requirement to award a firm fixed price contract.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** Locks, cores, cylinders and other associated access control hardware to create a complete and usable BEST great grand master lock and key system. BEST locks seamlessly integrate with our existing facility wide BEST great grand master access control system, as per Specificaiton Section 08 71 00 and related drawings.
4. **Statutory Authority Permitting Other than Full and Open Competition:** *41 USC §3304(a)(1), as implemented by FAR 6.302-1.*
(X) (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
() (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
() (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
() (4) International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
() (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
() (6) National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
() (7) Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

FAR13.5 Simplified Procedures for Certain Commercial Items: *The authority for applying the Simplified Procedures for Commercial Items of FAR 13.5 is 41 U.S.C. 1901 and is implemented by for restricting competition on this procurement via FAR 13.106-1(b)(2).*
5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**

Only One Responsible Source (FAR 6.302-1) – Although there are other manufacturers of access controls that can meet the same general performance standards as the BEST locks, they are not compatible with the BEST locks system. The BEST locks system is exclusively used at this facility. Use of additional manufacturers would result in the requirement to purchase and store additional spare inventory, have additional service contracts, and additional training for our locksmiths. Accordingly, BEST locks is the only firm capable of providing the supplies and services described in Section 3 above without the Veteran's Health Administration experiencing substantial duplication of cost that could not be expected to be recovered through competition.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:** A Notice of Intent to Sole Source Access Controls — BEST Locks will be posted on SAM.GOV with the solicitation. Offerors will be able to obtain BEST locks from various distributors and sources available in the open market.
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** The contract is a firm fixed price construction contract with multiple bidders and the BEST locks components are available from multiple vendors. Bid prices will be compared with the A/E prepared construction cost estimate to verify that the proposed contract cost is fair and reasonable.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** As described in Section 6 above, market research, in accordance with FAR Part 10, was conducted by synopsis of the proposed acquisition, advising industry of the pending acquisition and soliciting inquiries from interested parties.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** Quick access through locked doors is essential for our police and code teams in the event of an emergency. Installing non-compatible locks will increase the number and variety of keys that must be carried and tried in various locks, slowing down emergency responses, reducing patient, staff and visitor safety. No other manufacturer makes a system that is guaranteed, as a whole, to be compatible with our installed BEST locks system.
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** See paragraph 6, above.
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** If, in the future, there is a requirement to re-key the entire facility, then we will consider all manufacturers of locking systems with the appropriate performance specifications.
12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my

cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

DAVID SCHARF

Digitally signed by DAVID
SCHARF

Date: 2026.02.12 14:42:13 -05'00'

David C. Scharf
Assistant Chief Engineer
Lebanon VAMC

Date

13. Approvals in accordance with the VHAPM Part 806.3 OFOC SOP:

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

ELIJAH
MCINTOSH

Digitally signed by ELIJAH
MCINTOSH
Date: 2026.04.02 14:08:15
-04'00'

Elijah McIntosh
Lead Contracting Officer
NCO4 West Construction Team

Date

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$700K):** I certify the justification meets requirements for other than full and open competition.

Michelle Y. Lappen
Chief, NCO4 West Construction Team

Date